

		However, pursuant to Code of Civil Procedure section 663a, subdivision. (b), the motion was deemed denied as of 6/9/26 without further order of the court because the court did not rule on the motion within 75 days of the clerk mailing plaintiff notice of the order. Further, even if the motion is properly deemed a motion for reconsideration under Code of Civil Procedure section 1008 as Defendant contends, the court lacks jurisdiction to rule on it because of the pending appeal of the order. Motion 2: Motion to Stay of Enforcement Plaintiff Glenda Burgos's Motion to Stay Enforcement is DENIED as moot. Plaintiff seeks an order staying enforcement of the post-trial attorney fee award in the amount of \$7,070 entered on 3/26/26 pending resolution of Plaintiff's motion to vacate. However, Plaintiff already paid the \$7,070 fee award in April of 2026. (Dreyfuss Decl., ¶ 3.)
5	24-01420260 <i>Claudio vs. People Assisting The Homeless of Riverside California, Incorporated</i>	Motion for Summary Judgment and/or Adjudication Defendants People Assisting the Homeless of Riverside, California, Inc.; David Oliver; Richard Robison; and Courtney Gonzalez's Motion for Summary Judgment is MOOT and thus, taken off calendar in light of Plaintiff Nathaniel Garcia Claudio's acceptance of Defendants' statutory offer to compromise.
6	25-01499896 <i>Exim Engineering, Inc. vs. Orange Courier Inc.</i>	Motion to Be Relieved as Counsel of Record The motion of attorney William Kersten from Kersten & Associates to be relieved as counsel of record for defendant Orange Courier Inc. is DENIED without prejudice. On 7-30-26, the court continued the hearing on the Motion for failure to file proof of service showing moving papers were served on client and on all other parties that have appeared in the case in compliance with California Rules of Court, Rule 3.1362 subdivision (d). (Cal. R. Ct., Rule 3.1362, subd. (d) ["The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case."]) On 9-9-26, moving attorney filed a proof of service showing the Notice of Motion and Motion to Be Relieved as Counsel and Declaration in Support of Motion was served on the client on 7-31-26 by mail. (ROA 35.) The proof of service does not show the Proposed Order was not served on the client and there is no showing that any of the moving papers were served on Plaintiff or on other parties who have appeared in the case. Moving attorney to give notice.
7	25-01457304 <i>Fondo vs. Reyes Coca-Cola Bottling, L.L.C.</i>	Motion for Leave to File Cross Complaint Defendant Lancer Worldwide's Motion for Leave to File Cross-Complaint is GRANTED.

		The motion is unopposed. This Court has discretion to allow filing of a cross-complaint in order to ensure efficient litigation of the parties' claims on the merits. (See <i>Crocker Nat. Bank v. Emerald</i> (1990) 221 Cal.App.3d 852, 864; <i>Kalai v. Gray</i> (2003) 109 Cal.App.4th 768, 776.) Here, Defendant, the alleged manufacturer of the soda dispenser which caused Plaintiff's injuries, seeks to cross-complaint against another manufacturer which it contends is at fault for manufacturing the device - Marmon Holdings, Inc. The Court finds it is in the interests of justice to adjudicate such issues in this proceeding. The Cross-Complaint shall be filed and served within ten days of this order.
8	26-01544996 <i>Gold Flora LLC vs. Constellation Newenergy, Inc.</i>	1) Demurrer to Complaint 2) Demurrer to Complaint 3) Motion to Quash Service of Summons 4) Motion to Strike Complaint 5) Motion to Strike Portions Of Complaint Defendant Constellation Newenergy, Inc.'s (Constellation) Demurrer to Plaintiffs' Complaint is OVERRULED. Request for judicial notice (ROA 26) Constellation requests judicial notice of the following documents: - Exhibit A – 3/27/25 Declaration of Laurie Holcomb in Support of Gold Flora Corporation's Ex Parte Application For an Order Appointing a Receiver, along with exhibits, filed in the case of In re Gold Flora Corporation, et al., Superior Court for the State of California, County of Los Angeles, Case No. 25SMCP00161. - Exhibit B - Gold Flora, LLC and Black Lion Farms, LLC's 4/4/23 First Amended Complaint, along with exhibits, filed in the case of Gold Flora, LLC, et al. v. Constellation NewEnergy, Inc., United States District Court for the Central District of California, Case No. 8:22-cv-02088-JVS-JDE. - Exhibit C - Draft Master Funding Agreement between Black Lion Farms, LLC and Constellation NewEnergy, Inc. - Exhibit D - United States District Court for Central District of California's 3/14/23 Order on Constellation NewEnergy, Inc.'s Motion to Dismiss Gold Flora, LLC and Black Lion Farms, LLC's Complaint in the case of Gold Flora, LLC, et al. v. Constellation NewEnergy, Inc., Case No. 8:22-cv-02088-JVS-JDE. A court may take judicial notice of records of any court of this state, of the United States, or of any state of the United States. (Evid. Code § 452, subd. (d).) While "[a] court may take judicial notice of the <i>existence</i> of each document a court file, [it] can only take judicial notice